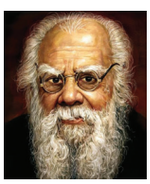
same demand in Congress Party. In 1925, during the Kanchipuram Congress Party Conference, Periyar passed a resolution regarding communal representation in education and employment. Periyar came out of congress party, since his resolution was rejected by the high command. In 1928, during the leadership of R.Muthiah, (Justice Party), Communal representation was passed and implemented in all the government departments.

First Amendment

In the aftermath of the effective implementation of Indian Constitution, in 1951, Mr. Senbagarajan filed a suit in the High Court; related to the denial of Medical Seats. He also mentioned that, communal representation is the reason for the denial of his seat. The High Court gave its Verdict that Communal representation decree is against the constitution and to be abandoned. In addition to that, Supreme Court also sided with the same Verdict. Reservation Policy on the basis of caste was abandoned due to the Verdict.



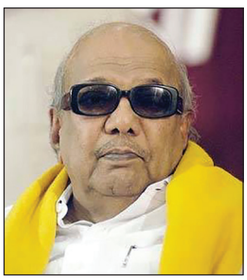



State wide protests erupted in Tamilnadu against the Verdict. E. V. Ramasamy, demanded for an amendment in the constitution. It is due to efforts of Periyar, Tamilnadu congress committee President Kamaraj, Prime Minister Jawarharlal Nehru and Ambedkar, an amendment was made related with the extension of Reservation Policy. This was the first Amendment in the Indian Constitution. Due to this, backward and other communities retained the opportunity of reservation.

According to articles 15 and 16 of Indian Constitution, "Socially and economically backward people can be provided with special privileges". This provision made Nehru to come with First Amendment in the Indian Constitution.

Accordingly, sub-sections 15 (4) and 16 (4) were included in the constitution. After the Amendment, from 1951 onwards Backward Communities receive 25% and Lower Caste 16% respectively due to reservation policy.

Expansion of Reservation



Under the Chief Ministership of M.Karunanidhi, a commission was constituted under the Chairmanship of Sattanathan to take into account on the welfare of backward community. It is on the basis of the recommendations of Sattanathan commission, backward community got 31% and SC/ST received 18% as reservation in 1971.

In 1979, Social Welfare Department of Tamilnadu Government issued an order (MS No.1156, Dated 02.02.1979). According to this order, annual family income of backward community was fixed as Rs.9,000/-. Later on, that order was repealed. A new order was issued, in which reservation for backward community was increased from 31% to 50% and for SC/ST it is 18%. To sum-up, 68% reservation came into effect in Tamilnadu.

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